

COMBRINCK v. CLERICO

23CV46872

MOTION TO STRIKE CROSS-COMPLAINT, DEMURRERS TO CROSS COMPLAINT and FIRST AMENDED ANSWER

Plaintiff suit seeks a partition by sale of the real properties located at: 1) 41 Purdy Road, Angels Camp; 2) 938 Purdy Road, Angels Camp; and 3) "Dead Horse Mine" (Calaveras County Assessor Parcel Number 062-002-094-000), and Declaratory Relief.

Defendant/cross-complainant seeks to quiet title, slander of title, cancellation of deed, and fraud.

Before the court are five separate motions brought by plaintiff/cross-defendant:

1. Motion to Strike Cross-Complaint;
2. Demurrer to Cross-Complaint;
3. Demurrer to Answer;
4. Demurrer to Cross-Complaint; and
5. Demurrer to Answer.

Notices of Non-Opposition have been filed on each as defendant/cross-complainant has did not file any opposition or response. The court is entitled to consider that lack of opposition to be an admission that the demurrers and motions to strike are meritorious. (*Sexton v. Superior Court* (1997) 58 Cal App.4th 1403, 1410.) Further, by failing to oppose the demurrers and motions to strike, defendant/cross-complainant has no standing to challenge the Court's rulings. (*In re Carrie W.* (2003) 110 Cal.App.4th 746, 755; *Broden v. Marin Humane Society* (1999) 70 Cal.App.4th 1212, 1226-1227, fn. 13; see [*8] also *Duarte v. Chino Comm. Hospital* (1999) 72 Cal.App.4th 849, 856; *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-85). However, the trial court must review the merits of a demurrer or motion to strike even when no opposition is filed.

Plaintiff/cross-defendant's motions to strike are construed as demurrers because a motion to strike cannot be used to challenge the legal sufficiency of a pleading. (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.)

The demurrers to Answer and Cross-Complaint are overruled. The allegations in the Cross-Complaint state a legally cognizable claim for relief. The allegations in the Answer contain a lengthy, "factual background," specific denials of material allegations of the complaint, and a statement of new matters constituting 37 affirmative defenses [Code Civ. Proc. § 418.30]. Leave to amend the complaint is denied because the complaint is legally sufficient as pled.

The motions to strike are denied in their entirety. Motions to strike are properly limited to redundant, immaterial, impertinent or scandalous matters. (CCP § 436.) Portions of a pleading that are relevant to a claim should not be stricken. (Pierson, supra at 342.)

Based on the foregoing, the Demurrers are OVERRULED and the motions to Strike are DENIED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Moving party to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

LENIOR, et al., v. PACIFIC GAS AND ELECTRIC COMPANY

22CV46442

DEMURRER TO PLAINTIFFS' FIRST AMENDED COMPLAINT

This case involves a dispute between utility customers and the utility company. At issue is a disputed unpaid bill in the amount of \$126,691.66. Defendant considers the bill to be bona fide based on suspicious (and possibly illegal) use and/or tampering with meter equipment.

Before the Court is defendant's demurrer to the operative First Amended Complaint, which includes a challenge to each cause of action stated therein. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein), or from matters outside the pleading which are judicially noticeable. The complaint is read as a whole. Material facts properly pleaded are assumed true, but contentions, deductions or conclusions of fact/law are not. In general, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (CCP §§425.10(a), 459; in accord, *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Gray v. Dignity Health* (2021) 70 Cal.App.5th 225, 236 n.10.)

Defendant's Request for Judicial Notice is GRANTED.

According to defendant, "adjudication of customer disputes regarding utility bills and termination of electric service are within the exclusive jurisdiction of the CPUC ... This Court does not have subject matter jurisdiction to review, restrain, or interfere with the CPUC's regulation, authority, or supervision of billing disputes or termination of electric service." Defendants cite to Public Utility Code §1759(a), which provides as follows:

"No court of this state, except the Supreme Court and the court of appeal, to the extent specified in this article, shall have jurisdiction to review, reverse, correct, or annul any order or decision of the commission or to suspend or delay the execution or operation thereof, or to enjoin, restrain, or interfere with the commission in the performance of its official duties, as provided by law and the rules of court."

There is an obvious overlap/conflict between §1759 and §2106 of the Public Utility Code. While §1759 was enacted to limit judicial review of CPUC actions, it was never intended to immunize or insulate a public utility from all civil actions brought in superior court. Instead, courts are instructed to engage in a three-part test to determine if the